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|  |  | <p>(<i>Children’s Hospital &amp; Medical Center v. Bonta</i> (2002) 97 Cal. App. 4th 740, 783.)</p> <p>Factors that may be considered in determining whether counsel’s rates are reasonable include: level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney’s reputation, and the undesirability of the case. (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1139.)</p> <p>The party requesting fees has the initial burden of producing evidence sufficient to support the reasonableness of the billing rates requested. (See <i>Davis v. City of San Diego</i> (2003) 106 Cal.App.4th 893, 903.) If the moving party meets its burden, the burden shifts to the opposing party to produce admissible evidence sufficient to show that the rates requested are not reasonable. (See <i>Graciano v. Robinson Ford Sales, Inc.</i> (2006) 144 Cal.App.4th 140, 155 [finding court erred in reducing rates where evidence of reasonableness of rate requested was undisputed]; <i>Davis v. City of San Diego</i>, 106 Cal.App.4th at 904.)</p> <p>Plaintiff seeks an hourly rate of \$695 for attorney Michael Saeediann, \$525 for attorney Christopher Urner, \$350 for attorney Jorge L. Acosta, \$300 for attorney Sergio Aivazov, and \$250 for Jorge L. Acosta (law clerk rate).</p> <p>The hourly rates claimed are generally reasonable and the declaration Michael Saeediann provides a basis for the requested hourly rates. However, the Court reduces the claimed law clerk hourly rate from \$250 to \$100. Other than that, the Court applies the hourly rates requested by Plaintiff for time reasonably spent in this case.</p> <p>In challenges to the reasonableness of the number of hours billed, “it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (<i>Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Ass’n</i> (2008) 163 Cal.App.4th 550, 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (<i>Id.</i>) Additionally, moving party’s counsel’s verified time records should be “entitled to credence in the absence of a clear indication the records are erroneous.” (<i>Horsford v. Board of Trustees</i> (2005) 132 Cal.App.4th 359, 396.) However, the Court “may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended.” (<i>Donahue v. Donahue</i> (2010) 182 Cal.App.4th 259, 271.)</p> <p>Here, Defendant has challenged numerous time entries by Plaintiff’s counsel. In reviewing Plaintiff’s counsels’ invoices, there are numerous instances of overbilling. The billing information provided by Plaintiff’s counsel contains a host of duplicative, excessive, and/or unnecessary entries and the Court does not award fees for that work. For instance, several attorneys billed time amounting to almost 10 hours for reviewing the vehicle’s repair history. Further, Plaintiff’s counsel billed for time spent on administrative work, such as reviewing Defendant’s Notice of Posting Jury Fees and calculating response deadlines after the summons was served.</p> |
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|                                  |                            | <p>Applying the above hourly rates and eliminating entries for duplicative, excessive and/or unnecessary work, the following hours and rates are reasonable:</p> <table><tr><th>Timekeeper</th><th>Hourly Rate</th><th>Time Claimed</th><th>Time Granted</th><th>Total</th></tr><tr><td>Michael Saeediann</td><td>\$695</td><td>1.5</td><td>0.9</td><td>625.5</td></tr><tr><td>Christopher Urner</td><td>\$525</td><td>24.8</td><td>16.8</td><td>8820</td></tr><tr><td>Jorge L. Acosta</td><td>\$350</td><td>12.1</td><td>8.5</td><td>2975</td></tr><tr><td>Sergio Aivazov</td><td>\$300</td><td>10.8</td><td>9.5</td><td>2850</td></tr><tr><td>Jorge L. Acosta (law clerk rate)</td><td>\$100</td><td>0.8</td><td>0.7</td><td>70</td></tr><tr><td>Total</td><td></td><td></td><td></td><td>\$15,340.5</td></tr></table> <p>The Court declines to apply a positive or negative multiplier to this case.</p> <p>Plaintiff filed a memorandum of costs claiming \$924.58 in costs. Defendant does not dispute the request for costs. Plaintiff’s requests for costs of \$924.58 is granted.</p> <p>Plaintiff to give notice.</p> <p><u>Order to Show Cause re: Dismissal on Settled Case</u></p> <p>The Order to Show Cause re: Dismissal on Settled Case is continued to June 26, 2025, at 9:00 a.m. in this Department.</p> <p>Plaintiff to give notice.</p> | Timekeeper   | Hourly Rate | Time Claimed | Time Granted | Total | Michael Saeediann | \$695 | 1.5 | 0.9 | 625.5 | Christopher Urner | \$525 | 24.8 | 16.8 | 8820 | Jorge L. Acosta | \$350 | 12.1 | 8.5 | 2975 | Sergio Aivazov | \$300 | 10.8 | 9.5 | 2850 | Jorge L. Acosta (law clerk rate) | \$100 | 0.8 | 0.7 | 70 | Total |  |  |  | \$15,340.5 |
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| Timekeeper                       | Hourly Rate                | Time Claimed                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Time Granted | Total       |              |              |       |                   |       |     |     |       |                   |       |      |      |      |                 |       |      |     |      |                |       |      |     |      |                                  |       |     |     |    |       |  |  |  |            |
| Michael Saeediann                | \$695                      | 1.5                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 0.9          | 625.5       |              |              |       |                   |       |     |     |       |                   |       |      |      |      |                 |       |      |     |      |                |       |      |     |      |                                  |       |     |     |    |       |  |  |  |            |
| Christopher Urner                | \$525                      | 24.8                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | 16.8         | 8820        |              |              |       |                   |       |     |     |       |                   |       |      |      |      |                 |       |      |     |      |                |       |      |     |      |                                  |       |     |     |    |       |  |  |  |            |
| Jorge L. Acosta                  | \$350                      | 12.1                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | 8.5          | 2975        |              |              |       |                   |       |     |     |       |                   |       |      |      |      |                 |       |      |     |      |                |       |      |     |      |                                  |       |     |     |    |       |  |  |  |            |
| Sergio Aivazov                   | \$300                      | 10.8                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | 9.5          | 2850        |              |              |       |                   |       |     |     |       |                   |       |      |      |      |                 |       |      |     |      |                |       |      |     |      |                                  |       |     |     |    |       |  |  |  |            |
| Jorge L. Acosta (law clerk rate) | \$100                      | 0.8                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 0.7          | 70          |              |              |       |                   |       |     |     |       |                   |       |      |      |      |                 |       |      |     |      |                |       |      |     |      |                                  |       |     |     |    |       |  |  |  |            |
| Total                            |                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |              | \$15,340.5  |              |              |       |                   |       |     |     |       |                   |       |      |      |      |                 |       |      |     |      |                |       |      |     |      |                                  |       |     |     |    |       |  |  |  |            |
| 9                                | Perez v. My Botanica, Inc. | <p>The motion by Defendant My Botanica, Inc., to strike portions of the complaint relating to punitive damages is <b>DENIED</b>.</p> <p>A motion to strike punitive damages is properly granted where a plaintiff does not state a prima facie claim for punitive damages, including allegations that defendant is guilty of oppression, fraud or malice. (<i>Turman v. Turning Point of Cent. California, Inc.</i> (2010) 191 Cal.App.4th 53, 63; Cal. Civ. Code § 3294(a).)</p> <p>“‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Code Civ. Proc. § 3294(c)(1).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Code Civ. Code § 3294(c)(2).) “‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Code Civ. Proc. §3294(c)(3).)</p>                                                                                                                               |              |             |              |              |       |                   |       |     |     |       |                   |       |      |      |      |                 |       |      |     |      |                |       |      |     |      |                                  |       |     |     |    |       |  |  |  |            |